

24NNCV06227 24NNCV06227

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CE%2C09%2F11%2F2026

Source SHA-256: b5b10786e03e8bfcf50c6200033260c3095b43edcb6aa1930cbfdc6933ccbd3f

Case Number: 24NNCV06227 Hearing Date: September 11, 2026 Dept: E

Hearing Date: 9/11/2026 – 9:30

a.m.

Case No.: 24NNCV06227

Trial Date: 11/30/2026

Case Name: HARRY MAZIAN v. PALLADIO, INC.; PALLADIO VENUE, LLC; and DOES 1-100

TENTATIVE RULING – MSJ/MSA

BACKGROUND

Plaintiff, Harry Mazian, filed the complaint in this action on 12/3/2024 against Defendants – (1) Palladio, Inc.; (2) Palladio Venue, LLC; and (3) Does 1-100.

Generally speaking, Plaintiff alleges that he was a lawful invitee at the subject premises [a banquet hall owned and/or managed by Defendants] and that he fell and injured himself on a dangerous condition due to the premises being maintained in a dangerous condition/Defendants failing to inspect the premises. (Compl., ¶¶ 9-12.)

RELIEF REQUESTED

Defendants – (1) Palladio, Inc. and (2) Palladio Venue, LLC – move for summary judgment in their favor pursuant to CCP § 437c.

In the alternative, Defendants move for summary adjudication on the basis that there is no triable issue of material fact, and the undisputed evidence demonstrates that Plaintiff's causes of action for negligence and premises liability fail because: (1) Defendants neither created nor were responsible for the alleged dangerous condition, (2) the alleged dangerous condition that caused Plaintiff's fall was open and obvious, and (3) Defendants did not have notice of any dangerous condition.

PROCEDURAL

Moving Party: Defendants, Palladio, Inc. and
Palladio Venue, LLC

Responding Party: Plaintiff, Harry Mazian

Moving Papers: Notice; Memorandum; Separate Statement; Declaration of Jessica Ortega; Defendants' Compendium of Evidence; Notice of Lodgment; Proposed Order

Opposing Papers: Opposition; Plaintiff's Separate Statement; Proposed Order; Plaintiff's Evidentiary Objections; Plaintiff's Notice of Lodgment

Reply Papers: Reply; Reply Separate Statement; Defendants' Response to Evidentiary Objections; Defendants' Objections to Evidence in Opposition; Proposed Order

LEGAL STANDARD – MOTION SUMMARY JUDGMENT

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose

whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As

to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP, § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (CCP, § 437c(p)(2).)

Courts

“liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

“Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP, § 437c(p)(2).)

To

establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant's showing. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.)

TENTATIVE RULING

Failing to

Meet Initial Burden – Problem 1

The parties'

papers submitted for this MSJ/MSA are not the model of clarity.

Defendants

begin by first explaining that discovery has established that Plaintiff (Mazian; a wedding guest) was attending a wedding reception at Defendants' banquet hall and that Plaintiff slipped and fell on a dollar bill that was on the ground from other wedding guests participating in the "money dance" – a tradition wherein during the bride and groom's first dance, wedding guests throw money into the air over the bride and groom, which causes the money to fall onto the dance floor.

By and large,

Defendants' moving and reply papers are borderline incomprehensible.

For example,

Defendants' reply argues that Defendants met their initial burden by presenting evidence that "negates multiple essential elements of Plaintiff's claims[.]" (Def. Reply, p. 3, Ins. 11-12.)

Here, the

Court has no idea how Defendants met their initial burden in negating multiple essential elements of Plaintiff's claims because the Court has no idea which elements Defendants' arguments are negating in Plaintiff's claims.

The elements

of a cause of action for negligence are: (1) the defendant had a duty to use due care, (2) that he [or she] breached that duty, and (3) that the breach was the proximate or legal cause of the resulting injury. (Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 278 citing Nally v. Grace Community Church (1988) 47 Cal.3d 278, 292-293.)

The elements

of a cause of action for premises liability are the same as those for negligence. (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207 citing Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Accordingly, the plaintiff must prove a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury. (Jones v. Awad, supra, 39 Cal.App.5th at 1207 citing Beacon Residential Community Assn. v. Skidmore, Owings & Merrill LLP (2014) 59 Cal.4th 568, 573.)

The

defendant bears the initial burden of showing that the plaintiff cannot establish one or more elements of the cause of action, or that there is an affirmative defense to it. (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 443 citing CCP § 437c(o) & Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

Defendants here move for summary judgment/adjudication based on three arguments.

Defendants argue that Plaintiff's claims for negligence/premises liability fail under the three arguments that:

(1) Defendants neither created nor were responsible for the alleged dangerous condition [Argument One];

(2) The alleged dangerous condition that caused Plaintiff's fall was open and obvious [Argument Two]; and

(3) Defendants did not have notice of any dangerous condition [Argument Three].

With respect to Defendants' Argument One – Plaintiff's claims fail because Defendants neither created nor were responsible for the alleged dangerous condition – it is not entirely clear what element, or elements [duty, breach, causation, damages] of a negligence/premises liability claim the Defendants are allegedly negating.

In Defendants' moving papers, with respect to Argument One, Defendants argue that Plaintiff cannot establish duty or breach as a matter of law. (Def. Memo., p. 6, Ins. 1-3.)

Confusingly, in Defendants' reply, with respect to Argument One, Defendants only argue that Plaintiff cannot establish breach as a matter of law. (Def. Reply, p. 7, Ins. 2-4.)

It is unclear if Defendants' Argument One is allegedly negating the elements of duty and breach [as the moving papers indicate] or just the element of breach [as the reply papers indicate].

With respect to Defendants' Argument Two – the alleged dangerous condition that caused Plaintiff's fall was open and obvious – it appears that Defendants are attempting to negate the element of duty in a negligence/premises liability cause of action. (Def. Memo., p. 7, Ins. 2-4.)

With respect to Defendants' Argument Three – Defendants did not have notice of any dangerous condition – neither Defendants' moving papers nor Defendants' reply attempts to explain what element [duty, breach, causation, damages] Defendants are attempting to negate. Defendants' moving papers argue that "Plaintiff cannot meet his burden of establishing notice, an essential element of his premises liability claim," (Def. Memo., p. 9, Ins. 20-21) but Defendants do not cite to any legal authority supporting the position that notice is an essential element of a claim for premises liability. To the Court's understanding, duty, breach, causation, and damages are the elements to a claim for premises liability.

At the hearing, the Court expects to hear from Defendants as to which element, or elements, their three arguments [Argument One, Argument Two, and Argument Three] allegedly negate.

Argument One Revisited

With respect to Defendants' Argument One – Plaintiff's claims fail because Defendants neither created nor were responsible for the alleged dangerous condition – it is not entirely clear what element, or elements [duty, breach, causation, damages] of a negligence/premises liability claim the Defendants are allegedly negating.

To the extent that Defendants are arguing that Argument One – Plaintiff's claims fail because Defendants neither created nor were responsible for the alleged dangerous condition – demonstrates that Plaintiff cannot establish duty as a matter of law, the Court does not find Defendants' argument availing.

The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion. (*Laabs v. Southern California Edison Co.* (2009) 175 Cal.App.4th 1260, 1271 citing *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.)

As a general rule, each person has a duty to use ordinary care and is liable for injuries caused by his failure to exercise reasonable care in the circumstances. (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1271 citing Rowland v. Christian (1968) 69 Cal.2d 108, 112.)

Whether a given case falls within an exception to the general rule, or whether a duty of care exists in a given circumstance is a question of law to be determined by the court on a case-by-case basis. (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1272.)

Whether a duty should be imposed on a defendant depends on a variety of policy considerations known as the Rowland factors. (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 446 citing Rowland v. Christian (1968) 69 Cal.2d 108, 112-113.)

This determination involves the balancing of these [Rowland] factors, including:

- (1) The foreseeability of harm to the plaintiff;
- (2) the degree of certainty that the plaintiff suffered injury;
- (3) the closeness of the connection between the defendant's conduct and the injury suffered;
- (4) the moral blame attached to the defendant's conduct;
- (5) the policy of preventing future harm;
- (6) the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach; and
- (7) the availability, cost, and prevalence of insurance for the risk involved.

(Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1272 citing Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 675, fn.5.)

Defendants state the following:

Here, the undisputed evidence establishes that Defendants neither created nor were responsible for the alleged dangerous condition that caused Plaintiff's injuries. Specifically, the evidence shows that at approximately 8:00 p.m., during the bride and groom's first dance, wedding guests participated in a traditional "money dance" by throwing money into the air over the bride and groom, causing the money to fall onto the dance floor. [UMF 2.] Neither Defendants nor any employee, agent, or representative of Defendants participated in throwing money onto the dance floor during the money dance. [UMF 3.]

Further, the undisputed evidence establishes that the wedding party, not Defendants, controlled the handling of the money thrown during the money dance. Mr. Djiguerian, the groom, did not assign anyone to collect money from the dance floor and does not know who, if anyone, collected the money following the money dance. [UMF 8.] Further, it did not occur to Mr. Djiguerian to raise any concern with Defendants regarding money remaining on the dance floor during the reception. [UMF 10.] Additionally, no employee, agent, or representative of Defendants ever stated that Defendants would be responsible for cleaning the dance floor during the wedding reception. [UMF 11.] Nor did Mr. Djiguerian have any discussions with Defendants, either during or after the money dance, regarding the logistics of removing money from the dance floor. [UMF 12.]

(Def. Memo., p. 5.)

After Defendants cite to their UMFs 2, 3, 8, 10, 11, and 12, referenced above, Defendants arrive at the conclusion that because they neither created nor were responsible for the condition that allegedly caused Plaintiff's fall, Plaintiff cannot establish duty or breach as a matter of law.

The Court does not find Defendants' arguments availing.

First, as to Defendants' Argument One – Plaintiff's claims fail because Defendants neither created nor were responsible for the alleged dangerous condition – Defendants provide zero explanation or legal argumentation as to which Rowland factor – (1) The foreseeability of harm to the plaintiff; (2) the degree of certainty that the plaintiff suffered injury; (3) the closeness of

the connection between the defendant's conduct and the injury suffered; (4) the moral blame attached to the defendant's conduct; (5) the policy of preventing future harm; (6) the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach; and (7) the availability, cost, and prevalence of insurance for the risk involved – Argument One applies to.

Second, generally speaking, Defendants don't even attempt to explain how the UMFs [2, 3, 8, 10, 11, and 12] that they cite demonstrate that Plaintiff cannot establish duty as a matter of law.

In moving for summary judgment, it is Defendants' burden to establish that the duty to exercise reasonable care did not apply to Plaintiff as a matter of law. (*Laabs v. Southern California Edison Co.* (2009) 175 Cal.App.4th 1260, 1279, fn. 10.)

Here, Defendants make no attempt to address any of the Rowland factors nor do they make any attempt to explain how the alleged UMFs that they cite demonstrate that Plaintiff cannot establish duty as a matter of law. Defendants simply lumped several alleged UMFs [2, 3, 8, 10, 11, and 12] together and then arrived at a legal conclusion [i.e., there is no duty] without providing legal authority/legal reasoning to explain how their conclusion is supported by the law.

To the extent that Defendants are also arguing that Argument One – Plaintiff's claims fail because Defendants neither created nor were responsible for the alleged dangerous condition – demonstrates that Plaintiff cannot establish breach as a matter of law, Defendants also entirely fail to provide legal authority or explanation as to how their conclusion [i.e., Plaintiff cannot establish breach as a matter of law] is supported by the law.

Overall, the Court does not even understand what Defendants' argument is with respect to the issue of breach.

Further, to the extent that Defendants are arguing that Plaintiff cannot establish breach, wouldn't whether or not there is a breach assume the existence of a duty in order to evaluate if there was a breach of a duty? How does Defendants' argument on breach not undercut its other argument that there is no duty as a matter of law?

Further, the elements of breach of duty and

causation are ordinarily questions of fact for the jury's determination. (Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 278 citing Andrews v. Wells (1988) 204 Cal.App.3d 533, 538.)

The Court finds Defendants' Argument One

unavailing because Defendants did not meet their initial burden.

Argument Two Revisited

With respect to Defendants' Argument Two – the alleged dangerous condition that caused Plaintiff's fall was open and obvious – it appears that Defendants are attempting to demonstrate that Plaintiff cannot establish duty as a matter of law.

Here, the Court is inclined to find that Defendants do not meet their burden in establishing that Plaintiff cannot establish duty as a matter of law; however, the Court will hear argument.

Defendants argue as follows:

Here, the

undisputed evidence establishes that the alleged condition was open and obvious. Plaintiff observed money on the dance floor following the money dance. [UMF 4.] Plaintiff also did not observe anyone removing money from the dance floor following the money dance. [UMF 5.] Further, the dance floor was well-lit at the time of Plaintiff's alleged fall. [UMF No. 13.] Despite observing money on the dance floor, Plaintiff voluntarily chose to continue dancing in the area.

Under these

undisputed facts, any potential danger associated with dancing on a floor containing visible dollar bills was open and obvious as a matter of law. Plaintiff's decision to continue dancing despite observing the condition was entirely voluntary and not compelled by any practical necessity. Because the condition itself served as a warning, Defendants owed no additional duty to warn Plaintiff of, or remedy, the alleged condition. Accordingly, Defendants are entitled to summary judgment under the open and obvious doctrine.

(Def. Memo., p. 6-7.)

The first problem with Defendants' Argument Two – the alleged dangerous condition that caused Plaintiff's fall was open and obvious – is that Defendants only address the first Rowland factor (foreseeability of harm to plaintiff). Defendants don't even attempt to address the remaining six Rowland factors.

Foreseeability of harm is typically absent when a dangerous condition is open and obvious. (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 447 citing Osborn v. Mission Ready Mix (1990) 224 Cal.App.3d 104, 122.)

In that situation, owners and possessors of land are entitled to assume others will perceive the obvious and take action to avoid the dangerous condition. (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 447 citing Haberlin v. Peninsula Celebration Assn. (1957) 156 Cal.App.2d 404, 408.)

Therefore, since Defendants don't even attempt to address the remaining Rowland factors, Defendants do not meet their initial burden in demonstrating that Plaintiff cannot establish duty as a matter of law.

In moving for summary judgment, it is Defendants' burden to establish that the duty to exercise reasonable care did not apply to Plaintiff as a matter of law. (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1279, fn. 10.)

Whether a given case falls within an exception to the general rule, or whether a duty of care exists in a given circumstance is a question of law to be determined by the court on a case-by-case basis. (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1272.)

Whether a duty should be imposed on a defendant depends on a variety of policy considerations known as the Rowland factors. (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 446 citing Rowland v. Christian (1968) 69 Cal.2d 108, 112-113.)

Here, Defendants' only addressed the first Rowland factor – foreseeability of harm. Defendants did not even attempt to address the remaining six Rowland factors.

The second problem with Defendants' Argument Two – the alleged dangerous

condition that caused Plaintiff's fall was open and obvious – is that the evidence [Defendants' UMFs 4-5] does not establish that the alleged condition was open and obvious.

With respect to Defendants citing to UMFs 4-5 to argue that the alleged dangerous condition that caused Plaintiff's fall was open and obvious, Defendants misrepresent the evidence that UMFs 4 and 5 are allegedly supported by.

With respect to UMF 4, Defendants state, "Plaintiff observed money on the dance floor following the money dance." (Def. UMF 4; Ex. 2 at p. 18:18-19.)

The Court notes Defendants' Exhibit 2 is Plaintiff's deposition testimony.

With respect to the alleged evidence that supports UMF 4, the deposition testimony states:

Q. Okay. So, take me to the time that the incident happened. I think you were mentioning before you're talking, dancing, sounds like maybe sitting at the table again, dancing again. And then, at what point does the incident happen and if you can give me the lead up to it?

A. Yes. It occurred around 10:00 p.m. There was music, several people dancing, um, on the dance floor. Um, yeah, there was -- there were dollar bills spread throughout the floor. And while dancing, I slipped on one of those dollar bills and my legs kind of did a criss cross and I landed on my backside.

(Def. Ex. 2, p. 18: 10-21.)

With respect to the deposition testimony/evidence that Defendants cite to support UMF 4, the evidence does not support Defendants' argument that the alleged dangerous condition was open and obvious.

First, no where in the evidence supporting UMF 4 [Def. Ex. 2, p. 18: 10-21] does Plaintiff explicitly state or opine on whether or not the dollar bills [dangerous condition] were open and obvious.

Second, Defendants seem to be imputing/subjectively interpreting/implying their own meaning from Plaintiff's response, or lack thereof.

As a preliminary matter, Defendants' counsel's Question and Plaintiff's Answer are not the model of clarity. It's difficult to decipher the Question/Answer on their face.

Additionally, Plaintiff's Answer does not say anything explicitly as to the openness or obviousness of the dollar bills that he slipped on.

Plaintiff's Answer is entirely unclear as to if Plaintiff saw the dollar bills that he slipped on before slipping on them, or if he saw them after he slipped on them. Plaintiff's Answer says nothing about when he saw the dollar bills that he slipped on.

Further, is Plaintiff's Answer generally explaining what happened, i.e., that what he slipped on were dollar bills on the floor, or is Plaintiff stating that he saw the dollar bills that he slipped on immediately before slipping on them?

Plaintiff's Answer is less than clear.

With respect to UMF 5, Defendants state, "Plaintiff did not observe anyone picking up money from the dance floor following the money dance." (Def. UMF 5; Ex. 2 at p. 21: 8-11.)

With respect to the alleged evidence that supports UMF 5, the deposition testimony states:

Q. At any point before your incident, so the two hours when the money throwing started, did you see anyone picking up any of the money off of the ground?

A. I personally did not see it.

(Def. UMF 5; Ex. 2 at p. 21: 8-11.)

With respect to the deposition testimony/evidence that Defendants cite to support UMF 5, the evidence does not support Defendants' argument that the

alleged dangerous condition was open and obvious.

First, nowhere in the evidence supporting UMF 5 [Def. Ex. 2 at p. 21: 8-11] does Plaintiff explicitly state or opine on whether or not the dollar bills [dangerous condition] were open and obvious.

Second, Defendants seem to be imputing/subjectively interpreting/implying their own meaning from Plaintiff's response, or lack thereof.

As a preliminary matter, Plaintiff admits that about two hours prior to the slip and fall, guests started throwing money at the bride and groom, and that most recently, about an hour before his fall, money was also thrown. (See Def. Ex. 2, p. 19: 12-19.)

Defendants seem to assume that since Plaintiff did not personally see anyone picking up any of the money off the ground, the money was therefore open and obvious for Plaintiff to see.

Problematic with Defendants' conclusion that the money was open and obvious for Plaintiff to see is that Defendants' conclusion does not necessarily follow from Plaintiff's Answer.

Plaintiff stated that he did not personally see anyone picking up any of the money off of the ground.

Plaintiff does not state/opine on whether the money on the floor was open and obvious.

It appears that Defendants are making assumptions about Plaintiff's state of mind/belief of what was on the floor at the time he slipped; however, Plaintiff's Answer provides no such insight.

Defendants seem to be assuming that since Plaintiff knew money was on the ground about an hour before, and since Plaintiff did not personally see anyone picking up money off the ground, Plaintiff thus knew the money must have still been on the ground. Therefore, Defendants seem to assume the money was open and obvious to Plaintiff.

Problematic with Defendants' apparent assumption is that Plaintiff's

Answer only states that he did not personally see anyone pick up the money off the ground.

Is it not possible that even though Plaintiff did not personally see anyone pick up the money off the ground, Plaintiff personally thought/assumed someone picked up the money off the ground since about an hour passed from when money was thrown to when he ended up falling?

Or to phrase it differently, would it not be reasonable for Plaintiff to assume that even though he saw that money was thrown, and even though he did not personally see anyone pick it up, Plaintiff assumed that a reasonable venue owner would have picked up the money, or that Plaintiff assumed that wedding guests [or the bride or groom] would have picked it up?

Ultimately, Plaintiff's response that he did not personally see anyone pick up the money does not opine on whether or not the money that Plaintiff slipped on was open and obvious. Further, Plaintiff's response is silent as to what Plaintiff did or did not see immediately before he slipped.

Therefore, with respect to UMFs 4-5, it does not appear that Defendants met their burden in establishing that the dangerous condition was open and obvious.

Further supporting the Court's view that UMFs 4-5 do not demonstrate that Defendants met their burden in establishing that the dangerous condition was open and obvious is the case of *Beauchamp v. Los Gatos Golf Course* (1969) 273 Cal.App.2d 20, 77.

As Jacobs describes *Beauchamp*:

The plaintiff in that case slipped and fell while walking in spiked golf shoes across the defendant's veranda, a rough, troweled concrete surface, even though she knew that her footing would not be as stable as it would have been on grass. (Id. at pp. 23-24, 77 Cal.Rptr. 914.) The route taken by plaintiff was not the only entrance to the golf club and there were "no imperfections or defects in the concrete walk surface." (Id. at p. 24, 77 Cal.Rptr. 914.) Even though the plaintiff knew that golf shoes reduce one's traction, the court found that "in view of the [club's] invitation to use the walkway, she was entitled to consider it reasonably safe" and that "the

question of her appreciation of the risk, or her imputed knowledge of it, is not so overwhelming as to properly permit a nonsuit.” (Id. at p. 34, 77 Cal.Rptr. 914.)

(Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 448 explaining Beauchamp v. Los Gatos Golf Course (1969) 273 Cal.App.2d 20, 77.)

The Court will hear argument with respect to Argument Two because Defendants also cite to UMF 13 for the proposition that the dangerous condition was open and obvious.

Defendants’ UMF 13 states, “The dance floor was well lit at the time of Plaintiff’s fall.”

To support UMF 13, Defendants cite to Defendants’ Exhibit 3, p. 86: 13-20, and Exhibit 4.

Exhibit 3 is deposition testimony of Aram Djiguerian [groom/cross-defendant/cross-complainant].

With respect to the deposition testimony that UMF 13 cites to:

Q. And can you describe the lighting of the venue that you see in this video?

A. Oh, it's light - - lighting elements on the stage. It's purple.

Q. But would you say that it's – the venue is so dark that you're unable to see the dollar bills on the ground?

A. I wouldn't say that it's dark.

(Def. Ex. 3, p. 86: 13-20.)

With respect to UMF 13, Defendants also appear to interpret Aram's (the groom) response in the manner most beneficial to Defendants; however, Aram's response does not demonstrate that the dangerous condition was open and

obvious.

Aram's response is vague.

Most importantly, the Court will hear argument about Argument Two because Exhibit 4 is allegedly the video of the subject incident that was played for Aram.

Problematic here is that the papers before the Court say that Exhibit 4 is to be lodged with the Court. At the hearing, the parties and the Court will discuss if the video for Exhibit 4 was lodged with the Court.

Defendants should be prepared to attend the hearing with a readily viewable video that can be displayed to the Court so the Court can determine whether or not the dangerous condition was open and obvious.

While the Court has its doubts as to the video in Exhibit 4 demonstrating that the dangerous condition was open and obvious, the Court reiterates that even if Defendants demonstrate that the dangerous condition was open and obvious, it could still be all for naught.

Defendants' Argument Two – the alleged dangerous condition that caused Plaintiff's fall was open and obvious – attempts to demonstrate that Plaintiff cannot establish duty as a matter of law.

Problematic with Defendants' open and obvious argument is that it only addresses the foreseeability factor of the Rowland factors.

Defendants are the ones with the burden to demonstrate the absence of a duty of care to Plaintiff as a matter of law. (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1279, fn. 10.)

The Court to hear argument on Argument Two.

Argument Three Revisited

With respect to Defendants' Argument Three – Defendants did not have notice of any dangerous condition – neither Defendants' moving papers nor Defendants' reply attempts to explain what element [duty, breach, causation, damages] Defendants are attempting to negate.

Defendants' moving papers argue that "Plaintiff cannot meet his burden of establishing notice, an essential element of his premises liability claim," (Def. Memo., p. 9, Ins. 20-21) but Defendants do not cite to any legal authority supporting the position that notice is an essential element of a claim for premises liability. To the Court's understanding, duty, breach, causation, and damages are the elements of a claim for premises liability.

The Court is inclined to find that Defendants' Argument Three is unavailing for the reasons explained below; however, the Court will hear argument.

First, the Court expects Defendants to address what element [duty, breach, causation, damages] Defendants are arguing the Plaintiff cannot establish with respect to Argument Three.

Second, the Court expects Defendants to provide legal authority that states that "notice is an essential element of a claim for premises liability." (Def. Memo., p. 9, Ins. 20-21.)

Third, although Defendants' moving papers argue that Plaintiff cannot meet his burden in establishing notice (Def. Memo., p. 9, Ins. 20-23), the Court notes that the initial burden is not on Plaintiff.

Defendants are the moving party; Defendants have the initial burden.

The defendant bears the initial burden of showing that the plaintiff cannot establish one or more elements of the cause of action, or that there is an affirmative defense to it. (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 443 citing CCP § 437c(o) & *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Fourth, Defendants' argument appears to fail under their own theory.

Defendants cite to *Morris v. Associated Securities, Inc.* (1965) 232 Cal.App.2d 220, 230 for the proposition that there can be no duty to warn unless the possessor of land has knowledge, actual or constructive, of the dangerous condition. (Def. Memo., p. 7, Ins. 22-23.)

Defendants argue:

Here, the

undisputed evidence establishes that at approximately 8:00 p.m., wedding guests participated in a traditional “money dance” by throwing money into the air over the bride and groom, causing the money to fall onto the dance floor. [UMF 2.] Neither Defendants nor any employee, agent, or representative of Defendants participated in throwing money onto the dance floor. [UMF 3.] The bride and groom received the money thrown during the money dance, although the groom, Mr. Djiguerian did not assign anyone to collect the money and does not know who, if anyone, collected it following the money dance. [UMF 7, 8.] Mr. Djiguerian also did not observe anyone collecting money from the dance floor after the money dance. [UMF 9.]

Further, it

did not occur to Mr. Djiguerian to raise any concern with Defendants regarding money remaining on the dance floor during the reception. [UMF 10.] No employee, agent, or representative of Defendants ever stated that Defendants would be responsible for cleaning the dance floor during the reception. [UMF 11.] Nor were there any discussions with Defendants regarding the logistics of cleaning money from the dance floor, either during or after the money dance. [UMF 12.]

Plaintiff

cannot establish that Defendants had actual or constructive notice of any allegedly dangerous condition. There is no evidence that Defendants created the condition, knew of the condition, or were informed that money remained on the dance floor. Nor is there evidence establishing how long any particular dollar bill was present before Plaintiff's alleged fall or that Defendants had sufficient time and opportunity to discover and remedy the condition.

(Def. Memo., p. 9.)

Problematic with Defendants' argument – that they did not have notice of the dangerous condition – is the case of *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200.

In relevant part of *Ortega*:

The

plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the

owner with constructive knowledge of its existence. Knowledge may be shown by circumstantial evidence "which is nothing more than one or more inferences which may be said to arise reasonably from a series of *1207 proven facts." (Hatfield, supra, 18 Cal.2d at p. 805.) Whether a dangerous condition has existed long enough for a reasonably prudent person to have discovered it is a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances. (Louie, supra, 81 Cal.App.2d at p. 608.) The owner must inspect the premises or take other proper action to ascertain their condition, and if, by the exercise of reasonable care, the owner would have discovered the condition, he is liable for failing to correct it. (Id. at p. 606.)

(Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206-1207.)

Here, Defendants make it entirely unclear what element [duty, breach, causation, damages] of a negligence/premises liability claim they are attempting to negate with their argument that Defendants did not have notice of the dangerous condition.

In any event, at the very least, there is dispute of material fact as to this issue.

Defendants' own evidence demonstrates a dispute of material fact as to whether or not Defendants had constructive notice.

Defendants' Exhibit 2 is the deposition testimony of Plaintiff. Plaintiff explains that money was on the ground about two hours prior to his fall and probably up to an hour prior to his fall. (See Def. Ex. 2, p. 19: 12-23.)

Plaintiff's deposition testimony, Def. Ex. 2, p. 19: 12-23, demonstrates a dispute of material fact as to whether or not Defendants had constructive knowledge of the dangerous condition.

As explained in Ortega:

Knowledge
may be shown by circumstantial evidence "which is nothing more than one or more inferences which may be said to arise reasonably from a series of *1207 proven facts." (Hatfield, supra, 18 Cal.2d at p. 805.) Whether a dangerous

condition has existed long enough for a reasonably prudent person to have discovered it is a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances. (Louie, supra, 81 Cal.App.2d at p. 608.)

(Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206-1207.)

Therefore, the Court will likely find Defendants' Argument Three to be unavailing.

OVERALL TENTATIVE RULING

Defendants' MSJ/MSA is likely to be DENIED in its entirety.

The Court expects to hear from the parties on the issues addressed above.

The Court expects Defendants to be prepared with a readily viewable copy of the video in Exhibit 4.

With respect to Defendants' Argument One and Argument Two, the Court is likely to find that Defendants did not meet their initial burden.

With respect to Defendants' Argument Three, although it's entirely unclear what element Defendants are attempting to negate, Plaintiff demonstrates a dispute of material fact simply by the existence of the evidence that Defendants submitted themselves. (See Def. Ex. 2, p. 19: 12-23.)